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CASE #	CASE NAME	HEARING NAME
CVRI2503244	MARTINEZ VS NISSAN NORTH AMERICA	MOTION TO COMPEL PRODUCTION OF PLAINTIFF'S VEHICLE FOR INSPECTION BY NISSAN NORTH AMERICA
CVRI2503244	MARTINEZ VS NISSAN NORTH AMERICA	MOTION TO COMPEL DEPOSITION AND FOR SANCTIONS BY NISSAN NORTH AMERICA

Tentative Ruling:

Moving party: Defendant Nissan North America, Inc.

Responding party: Plaintiff Sonia Martinez

This is a lemon law matter. Plaintiff Sonia Martinez alleges violations of the Song-Beverly Act with respect to her 2024 Nissan Rogue.

Defendant Nissan North America, Inc. brings two discovery motions: (1) a motion to compel production of Plaintiff's vehicle for inspection and request for monetary sanctions; and (2) a motion to compel Plaintiff's deposition.

In Opposition to both motions, Plaintiff's counsel indicates they provided proposed dates for both the vehicle inspection (October 28, 2026) and deposition (September 23, 2026). Plaintiff's counsel states Plaintiff has never refused to submit herself to a deposition or provide her car for inspection. (Zhang Decl. ¶¶11.) On March 26, 2026, Plaintiff served an objection to the deposition notice. (Acheampong Decl. ¶¶3.) Defendant's counsel sent three emails to Plaintiff's counsel attempting to meet and confer regarding Plaintiff's availability. (Acheampong Decl. ¶¶4-6.) Plaintiff provided the proposed date for her deposition immediately after Defendant filed the instant motion. (Zhang Decl. ¶¶8-9.)

Similarly, on March 30, 2026, Plaintiff served objections to Nissan's Demand for Vehicle Inspection. (Acheampong Decl. ¶¶3.) Defendant's counsel then sent two emails requesting available dates. (Acheampong Decl. ¶¶4-5.) Plaintiff's counsel did not respond. Ultimately, Plaintiff's counsel provided a date to inspect the vehicle on July 2, 2026 (the day Plaintiff filed the Opposition). (Acheampong Reply Decl. ¶¶2.)

Since the parties have agreed to dates for Plaintiff's deposition and vehicle inspection, there is nothing left to compel. The motions are moot.

The issue of sanctions remains. Plaintiff's counsel states Plaintiff has never refused to sit for a deposition or produce the car for inspection. However, Defendant argues sanctions against Plaintiff are still appropriate because Plaintiff did not actually provide dates until after the motions were filed. The court has discretion to award sanctions under California Rules of Court, Rule 3.1348, which provides the court "may award sanctions...in favor of a party who files a motion to compel discovery even

though...the requested discovery was provided to the moving party after the motion was filed.” Here, Defendant was successful in obtaining the objectives of its motions (securing dates for the inspection and deposition). It is clear Plaintiff only provided those dates because the motions were filed. This makes sanctions appropriate.

Defendant seeks \$1,735 (MTC deposition) and \$1,685 (MTC vehicle inspection) in monetary sanctions against Plaintiff. Defendant’s counsel charges at a rate of \$250/hour. Defendant’s counsel spent 3.5 hours preparing the motion to compel vehicle inspection and 3.7 hours preparing the motion to compel deposition. Defendant’s counsel anticipated spending an additional 3 hours per motion to prepare the reply, prepare for oral argument, and attend the hearing. Defendant incurred \$60 filing fees for each motion.

The court reduces the requested sanctions by 1 hour (\$250) per motion because the estimated three hours per motion to prepare a reply and prepare for/attend oral argument is excessive.

Summary:

The motions are moot. The court awards monetary sanctions in favor of Defendant and against Plaintiff totaling \$1,485 (MTC deposition) and \$1,435 (MTC vehicle inspection), payable within 30 days of this order.